

1. Residency and Financials

1.1 PARTIES AND OCCUPANTS

This Lease Agreement, created between Nelson Loong Chik Chui, herein called Landlord, and Sandy A. Rios, herein called Tenant. Landlord hereby agrees to rent to Tenant the real property located at:

2130 Prato St
Brentwood, CA 94513

USE and OCCUPANCY

Property shall be used as a residence only. Operating a business from this property is prohibited. The premises are to be occupied as a residence and only those adults specifically named in this agreement, along with their dependents, Anthonie Segovia, Julian Rios may occupy and use the premises. Occupancy by anyone other than those named above for more than 10 nights shall constitute a breach of the Lease Agreement unless prior consent is obtained in writing by Landlord.

NON-ASSIGNMENT OF RENTAL AGREEMENT Tenant shall not sublet all or any part of the premises, or assign or transfer this Agreement or any interest in it, without Landlord's prior written consent. Unless such consent is obtained, any assignment transfer or subletting of premises or this Agreement or tenancy, by voluntary act of Tenant, operation of law or otherwise, shall, at the option of Landlord terminate this Agreement. Any proposed assignee, transferee or sublessee shall submit to Landlord an application and credit information to Landlord's approval and, if approved, sign a separate written agreement with Landlord and Tenant. Landlord's consent to any one assignment, transfer or sublease, shall not be construed as consent to any subsequent assignment, transfer or sublease and does not release Tenant of Tenant's obligations under this Agreement.

SHORT-TERM RENTAL Tenant is prohibited from offering all or part of the Premises for short-term rental, such as through AirBNB, VRBO, or other such sites or programs, regardless of any local laws that may be or have been enacted. Any advertising or on-line postings as well as actual rentals of the Premises to vacation or short-term guests shall constitute a material breach of this Agreement. Any person who is not a Tenant, as defined herein, who occupies any portion of the Premises, for any period of time whatsoever, for any compensation or consideration whatsoever (including, without limitation, the payment of money and/or trade and/or barter of other goods, services, or property occupancy rights) is NOT a guest, and such occupancy constitutes unauthorized subletting or assignment which is a substantial and material breach of this Agreement.

JOINT AND INDIVIDUAL OBLIGATIONS If there is more than one Tenant, each one shall be individually and completely responsible for the performance of all obligations of Tenant under this Agreement, jointly and with every other Tenant, and individually, whether or not in possession.

POSSESSION Tenant is not in possession of the premises. If Landlord is unable to deliver possession of premises on commencement date of this agreement, such date shall be extended to the date on which possession is made available to Tenant. If Landlord is unable to deliver possession within 5 calendar days after agreed commencement date, Tenant may terminate this Agreement by giving written notice to Landlord, and shall be refunded all rent and security deposit paid. Possession is deemed terminated when Tenant has returned all keys to the premises to Landlord.

1.2 LEASE DURATION

Commencing on the 11/01/2022 and ending on 10/29/2023. Thirty (30) days written notice is required by either party to terminate this Agreement at the scheduled lease expiration date. **If no notice is given by either party, this Agreement will continue on a month-to-month basis.** Tenant may then terminate tenancy by providing thirty (30) days written notice (texts and/or verbal notice is not acceptable notice). Landlord may terminate the tenancy by providing written notice as provided by law. Landlord rents the premises to Tenant with the following terms and conditions.

CONFIRMATION OF REAL ESTATE AGENCY RELATIONSHIPS

Pure Property Management, Inc., dba Select 1 Realty Property Management is the agent of the Landlord exclusively.

1.3 MOVE IN COST

The following amounts must be received from Tenant prior to delivering possession to the property. **Landlord requires move-in funds to be in the form of cashier's check or money order if move-in date is less than 7 business days from signing this agreement.**

Monthly Rent: \$2,600.00

Security Deposit: \$3,500.00

Total Charges Due on or before Move-In: \$6,139.00

A pro-rated rent of \$2,600.00 will be due on the first of the month following move-in.

1.4 RENT AND CHARGES

RENT

"Rent" shall mean all monetary obligations of Tenant to Landlord under the terms of the Agreement, except security deposit. Tenants agree to pay Landlord the sum of \$2,600.00 due and payable monthly in advance on or before the first (1st) of each month during the term of this Agreement. If rent is not personally received by 5:00pm on the third (3rd) day of the month, then it will be considered by all parties to be late. If the 3rd day of the month is a Sunday, late fees will be assessed as of 5:00 pm on the 4th. If Tenant chooses to mail rental payment they assume the risk of late arrival.

The total amount of the rent due under the terms of this Agreement is \$31,113.33

PAYMENT OF RENT

Monthly payments may be made by personal check, including electronic funds transfer. No personal checks will be accepted after the 6th day of the month or in response to a notice to pay rent or quit or a notice to perform covenant or quit requiring a payment. The normal hours available to make payments in person are from 8am to 5pm on weekdays. A 24 hour, seven days a week rent payment drop slot is available at the address below. If any payment is returned for non-sufficient funds or because tenant stops payment, then after that Landlord may, in writing, require Tenant to pay rent in cashier's check for three months. If any subsequent rent is returned, for any reason, Landlord may require all future rent to be paid by cashier's check or money order. Rent received may be applied first to outstanding charges. Time is of the essence and no excuses will be accepted. Rent shall be made payable to:

Select 1 Realty Property Management

1500 A Street

Antioch, CA. 94509

(925) 706-9000

LATE CHARGE AND RETURNED CHECKS

Tenant acknowledges either late payment of Rent or issuance of a returned check may cause Landlord to incur costs and expenses, the exact amounts of which are extremely difficult and impractical to determine. These costs may include, but are not limited to, processing, enforcement and accounting expenses. If any installment of rent due from Tenant is not received by Landlord by **5:00pm on the third (3rd) day of the month**, or if a check is returned, regardless of cause, Tenant shall pay a late charge equal to four percent (4%) of such overdue amount and \$25.00 as a returned item fee, either or both of which shall be deemed additional rent.

Landlord and Tenant agree that these charges represent a fair and reasonable estimate of the costs Landlord may incur by reason of Tenant's late or NSF payment. Any Late Charge or NSF fee due shall be paid with the current installment of Rent. Landlord's acceptance of any Late Charge or NSF fee shall not constitute a waiver as to any default of Tenant. Landlord's right to collect a Late Charge or NSF fee shall not be deemed an extension of the date Rent is due under paragraph 1 or prevent Landlord from exercising any other rights and remedies under this Agreement and as provided by law. **The late charge will be strictly enforced without exception or waiver.**

LEGAL OBLIGATIONS

Tenant hereby acknowledges that he has a legal obligation to pay his rent on time each and every month regardless of any other debts or responsibilities he may have. Tenant agrees that he will be fully responsible for any back rent owed and acknowledges that defaulting on this lease agreement could result in a judgment against him and/or a lien filed against his current assets and/or earnings. Tenant further acknowledges and accepts that late payments or non-payments of rent may be filed with credit reporting agencies.

SERVICE FEES

Tenant agrees to pay \$50.00 for each notice delivered to the premises by Landlord or Landlord's representative for non-payment of rent, eviction, notice for a lease violation and notice when Tenant has terminated any Tenant paid utilities

1.5 SECURITY DEPOSIT

SECURITY DEPOSIT

Tenant has agreed to pay a security deposit of \$3,500.00 to be refunded as per California law. All or any portion of the security deposit may be used, as reasonably necessary, to: (i) cure Tenant's default in payment of Rent (which includes Late Charges, NSF fees or other sums due); (ii) repair damage, excluding ordinary wear and tear, caused by Tenant or by a guest or licensee of Tenant; (iii) clean Premises, if necessary, upon termination of the tenancy; and (iv) replace or return personal property or appurtenances. No interest will be paid on this money at any time unless required by law. **SECURITY DEPOSIT SHALL NOT BE USED BY TENANT IN LIEU OF PAYMENT OF LAST MONTH'S RENT.** If all or any portion of the security deposit is used during the tenancy, Tenant agrees to reinstate the total security deposit within five

days after written notice is delivered to Tenant. Security deposit will not be returned until all Tenants have vacated the premises and all keys returned. Any security deposit returned by check shall be made out to all Tenants named on this Agreement, or as subsequently modified.

1.6 UTILITIES AND SERVICES

UTILITIES and SERVICES

Tenant is responsible for all utilities and services not specifically mentioned as being provided. The following utilities and services are provided under the terms of this Lease Agreement: landscaping provided .

Landlord is only responsible for installing and maintaining one usable telephone jack and one telephone line to the premises. Tenant shall pay any cost for conversion from existing utility service provider. Tenant specifically authorizes Landlord to deduct necessary funds for Tenant's unpaid bills from Tenant's deposit in the event they remain unpaid.

Landlord does not guarantee or warrant that there will be no interruption of utility service. You shall contact the utility service provider in the event of an interruption of service. Landlord is not responsible for damages or food spoilage regardless of cause.

1.7 INSURANCE

TENANT INSURANCE

Personal property of Tenant and/or guests of Tenant are not insured by Landlord, manager or, if applicable, HOA against loss or damage due to fire, theft, vandalism, rain, water damage, pipe leaks, criminal or negligent acts of others, or any other cause. **Tenant agrees to carry renters insurance to protect Tenant from any such loss or damage and to name Select 1 Property Management as Additional Insured. Tenant agrees to maintain coverage throughout their occupancy and is required to produce evidence of continuing coverage upon renewal each period. Policy coverage shall include a minimum of \$100,000 liability if no pets and a minimum of \$500,000 if Landlord has approved a pet dog. No additional insurance is required if dog is a emotional support dog with verifiable documentation confirmed by PetScreening.com.** Tenant is hereby notified that in the event of a loss or damage to the premises or the property within, due to Tenant negligence or malfunction of Tenant's property (such as a washing machine), Tenant is responsible for all damage and loss to the Premises to include but not limited to: cleanup, repairs, and replacement expenses to restore property and premises to original condition prior to the loss. Failure to maintain personal liability insurance is an incurable breach of this Lease Agreement and may result in termination of tenancy and eviction and/or any other remedies provided by this Lease Agreement or California statute.

1.8 KEYS AND LOCKS

KEYS and CONTROLS Tenant will be charged rent until all keys and controls, as listed below, are surrendered directly to Landlord. Tenants are not to leave keys at the property. If Tenant re-keys existing locks or opening devices, Tenant shall immediately deliver copies of all keys to Landlord. Tenant shall pay all costs and charges related to loss of any keys or opening devices. Tenant may not remove locks, even if installed by Tenant. All deadlocks, keys, window latches, doorknobs and any additional device required by local government ordinance, will be in working order when you move in. Tenant shall be liable for the entire cost of all of key and lock replacements during tenancy. Tenant shall not change the locks or add a deadbolt lock without written consent. All keys must be returned to us when you vacate the unit. Tenant will be charged for the cost of new locks and keys that are not returned.

1.9 NOTICE OF EXEMPTION FROM RENT CAP AND JUST CAUSE EVICTION LAW FOR SINGLE FAMILY RESIDENTIAL PROPERTY (INCLUDING CONDOMINIUMS AND UNITS IN PLANNED DEVELOPMENTS)

Landlord hereby notifies tenant that the Property is exempt from the rent cap provisions specified in Civil Code §1947.12 and the just cause eviction provisions specified in Civil Code §1946.2

This property is not subject to the rent limits imposed by Section 1947.12 of subject to the rent limits imposed by Section 1947.12 of the Civil Code and is not subject to the just cause requirements of Section 1946.2 of the Civil Code. This property meets the requirements of Sections 1947.12(d)(5) and 1946.2(e)(8) of the Civil Code and the owner is not any of the following: (1) a real estate investment trust, as defined by Section 856 of the Internal Revenue Code; (2) a corporation; or (3) a limited liability company in which at least one member is a corporation.

By initialing below, you acknowledge and agree to the terms in Section 1.

By initialing below, you acknowledge and agree to the terms in Section 1.

X SR
Sandy A. Rios

2. Policies and Procedures

2.1 COMMUNITY POLICIES OR RULES

RULES AND REGULATIONS

Tenant agrees to comply with all CC&R's, and with the Rules and Regulations printed as an attachment to this document. Tenant further agrees to comply with any decisions made by homeowner associations that are posted on the premises or delivered to Tenant or adopted by homeowner association. Tenants understand they will be responsible for any fines or charges levied due to any violations.

PROHIBITIONS AGAINST VIOLATING LAWS AND CAUSING DISTURBANCES

Tenants shall be entitled to quiet enjoyment of the premises. Tenants and their guests or invitees shall not use the premises or adjacent areas in such a way as to: (1) violate any law or ordinance, including laws prohibiting the use, possession or sale of illegal drugs; (2) commit waste or nuisance; or (3) annoy, disturb, inconvenience or interfere with the quiet enjoyment and peace and quiet of any other nearby resident.

SATELLITE DISHES Owner will permit Tenant to install a satellite dish for personal, private use on the premises under the following conditions:

1. The satellite dish must be one meter or less in diameter;
2. The satellite dish may only be installed on the inside balcony, patio or terrace that is under the exclusive control of Tenant. Said satellite dish, or any part thereof, shall not extend beyond the balcony, patio or terrace railing;
3. Tenant is specifically prohibited from making physical modifications to the premises and is prohibited from installing said satellite dish in the common areas of the premises, including but not limited to, outside walls, roofs, window sills, common balconies or stairways; **No running or attaching cabling on the exterior of the building for more than two (2) feet. Cabling must run in the crawl space or attic, not on the exterior of the building and not attached to the interior walls and run around the perimeter of any interior room. Tenant is responsible for removal of satellite dish and any cabling upon vacating the property in a manner that does not cause any damage to the property.**
4. Tenant shall not install said satellite dish in a manner which causes physical or structural damage to the premises, excluding ordinary wear and tear, including but not limited to, holes drilled through exterior walls or roofing.
5. Tenant shall install, maintain and remove said satellite dish in a manner that is consistent with industry standards and shall be liable for any damage or injury sustained as a result of the negligent installation, maintenance or removal of said satellite dish.
6. Tenant shall indemnify, defend and hold Owner and/or Owner's agent harmless for any damage or injury resulting from said negligence, including paying Owner's and/or Owner's agent's attorneys fees and costs.

2.2 RESIDENT SAFETY AND PROPERTY LOSS

MEGAN'S LAW

Registered Sex Offenders Notice: Pursuant to Section 290.46 of the Penal Code, information about specified registered sex offenders is made available to the public via an Internet Web site maintained by the Department of Justice at www.meganslaw.ca.gov. Depending on an offender's criminal history, this information will include either the address at which the offender resides or the community of residence and ZIP Code in which he or she resides.

SMOKE and CARBON MONOXIDE ALARMS

The residence is equipped with smoke and carbon monoxide alarms in accordance with state or local government regulations. Tenant must 4 immediately report smoke or carbon monoxide alarm malfunctions to Landlord or Landlord's representative. Tenant will be liable for any loss, damage, or fines from fire, smoke, or water if that condition arises from disabling or damaging the smoke alarm or from failure to report malfunctions. **Tenant will be responsible for any costs associated with repair, replacement or reinstallation of smoke and/or carbon monoxide alarms that have been disabled or removed during their tenancy.**

SAFETY AND CRIME FREE

Tenant or any guest or resident under tenant's control, should not engage in any criminal activity in the residence or community. In case of emergency, fire, accident, smoke or suspected criminal activity, dial 911 or call emergency personnel. Tenant should then contact the offices of Select 1 Realty Property Management (925-706-7000). Unless otherwise provided by law, Landlord is not liable to Tenant or any guests or occupants for injury, damage, or loss to person or property caused by criminal conduct of other persons, including theft, burglary, assault, vandalism, or other crimes.

2.3 PARKING

Tenant will park on the property at their own risk. If property is situated in an HOA, Tenant agrees to abide by any parking regulations

currently in place or amended at a later date. If property is situated in an HOA community or if there is more than one dwelling onsite, Landlord may regulate the time, manner, and place of parking all vehicles, bicycles, boats trailers or recreational vehicles. Landlord or HOA may have unauthorized or illegally parked vehicles towed under an appropriate statute. Vehicles are prohibited from parking on the premises if they are inoperable, have no current license, take up more than one parking space, are parked in a marked handicap space without proper handicap insignia, block other vehicles from exiting, are parked in a space not dedicated to parking, including, but not limited to, grass, sidewalks, patio, and fire lanes.

2.4 ANIMALS AND PETS

Unless otherwise provided in California Civil Code Section 54.2, or other law, no animal or pet shall be kept on or about the property without Landlord's prior written consent except as agreed to below.

The following animal and/or pet(s) have been approved by Landlord to be maintained at the residence:

Pets (including mammals, reptiles, birds, fish, and insects) are allowed only if Landlord has so authorized in writing. Tenant must remove an unauthorized animal within 24 hours of notice from Landlord or Tenant will be considered in default of this Lease Agreement. Landlord will authorize a service animal for a disabled person. Landlord may require a written statement from a person who can credibly speak to Resident's disability and need for the service animal. Dogs: if Landlord has approved a dog, Resident acknowledges that dogs must be on a leash and under control of a responsible person at all times when not inside the property or when present in a common area such as a shared patio, yard or being walked in the neighborhood. Resident is responsible for picking up after their dog and insuring proper disposal of animal waste. **If a pet dog has been approved by Landlord, Tenant agrees to maintain, and provide evidence of, a minimum of \$500,000 liability coverage on a renter's insurance policy.**

The Tenant is fully responsible for any damage to the premises of Landlord that may result from the maintenance of a pet or animal. Tenant agrees to pay for any and all pest (flea) control services during and upon termination of tenancy if necessary. After vacating premises, Tenant further agrees to have carpets professionally cleaned and deodorized using a company approved by Landlord.

By initialing below, you acknowledge and agree to the terms in Section 2.

X SR
Sandy A. Rios

3. Responsibilities

3.1 CONDITION OF PREMISE AND ALTERATIONS

ALTERATIONS

Tenant shall make no alterations, decorations, additions, or improvements in or to the property without Landlord's written consent. No tarps, awnings or temporary structures may be installed at anytime without written consent of Landlord or Landlord's agent. Tenant agrees that any holes created by large nails, screws, etc., used to hang pictures will be patched prior to move-out.

CONDITION OF PREMISES

Tenant agrees to: (1) keep the premises clean and sanitary and in good repair and, upon termination of the tenancy, to return the premises to Landlord in a condition identical to that which existed when Tenants took occupancy, except for normal wear and tear; Tenants agree to have all carpets, tile and hardwood floors professionally cleaned by a vendor approved by Landlord at termination of tenancy; (2) immediately notify Landlord of any defects or dangerous conditions in and about the premises of which they become aware; and (3) reimburse Landlord, on demand by Landlord, for the cost of any repairs to the premises damaged by Tenants or their guests or invitees through misuse or neglect.

Tenants acknowledge that they have examined the premises, including appliances, fixtures, carpets, drapes and paint, and agree to accept property in **"as is" condition**. Prior to or upon moving into the premises, Landlord will complete a Property Condition Report, which will be signed by Tenant and Tenant will be provided a copy of report. Tenant is given one (1) week from date of occupancy in which to complete a New Tenancy Condition Report to amend the inspection report. Failure to amend report within the one (1) week period shall constitute acceptance of the Property Condition Report as written.

MAINTENANCE OF LAWNS AND LANDSCAPE

Tenant understands that at all times Tenant is responsible for keeping all outside areas free of garbage, debris, animal feces, and or any other unsightly item. **Whether or not landscape service is provided by owner, Tenant acknowledges they will be held liable for any damages caused by animals, neglect, abuse or lack of water.** If landscape service is provided by Owner, it is a Tenant responsibility, as the

individual(s) residing at the property, to promptly report in writing:

- any change in the appearance of the landscape due to lack of water or over watering
- any prolonged failure of landscaping service to properly maintain the landscape in a well manicured state
- all required written notifications may be submitted via the Tenant Portal by initiating a maintenance request. Note: pictures can be attached to any maintenance request and are helpful in identifying/documenting issues.

If gardening service is not provided, Tenants acknowledge that they are responsible for maintaining the lawns and landscape by watering, weeding, fertilizing, mowing and shaping as necessary. Tenant's failure to maintain the lawns and landscaping to the Owner's satisfaction shall give Owner the right to hire someone to perform such maintenance and charge Tenant to cover the cost of such maintenance.

NON-LIABILITY

Tenant hereby agrees that any work or repairs that need to be done will be handled by competent professionals. If Tenant does any work themselves, they further agree that they will be legally responsible for any mishap or damage he does either to himself or to the property. Landlord, his agents, and representatives will be held harmless and free from liability.

MOLD AND VENTILATION

It is our goal to maintain the highest quality living environment for our Tenants. Therefore, know that the Landlord or Landlord's agent has inspected the residence prior to lease and knows of no damp or wet building materials and knows of no mold or mildew contamination. Tenant is hereby notified that mold, however, can grow if the premises are not properly maintained or ventilated. If moisture is allowed to accumulate in the residence, it can cause mildew and mold to grow. It is important that Tenants regularly allow air to circulate in the residence. It is also important that Tenants keep the interior of the unit clean and that they promptly notify the Landlord of any leaks, moisture problems and/or mold growth.

Tenant acknowledges and agrees that Tenant has a responsibility to maintain the property in order to inhibit mold growth and that Tenant's agreement to do so is part of Tenant's material consideration in Landlord's agreement to rent the property to Tenant. Accordingly, Tenant agrees to::

1. Keep the residence free of dirt and debris that can harbor mold.
2. Immediately report to the Landlord any water intrusion, such as plumbing leaks, drips, or "sweating" pipes.
3. Immediately report to Landlord any overflows from bathroom, kitchen, or unit laundry facilities, especially in cases where the overflow may have permeated walls or cabinets. **IMPORTANT: Water can cause serious and extensive property damage. Tenant must contact property manager either in person or on the telephone to report the occurrence of a water leak and/or overflow. Taking appropriate action to speak with property manager -- or the after hours emergency team if outside of normal business hours -- is critical. Sending an email or leaving a voicemail is NOT sufficient notification. Contact property manager at 888-708-0528 for instructions after normal business hours.**
4. Report to the Landlord any significant mold growth on surfaces inside the premises.
5. Allow the Landlord to enter the unit to inspect and make necessary repairs.
6. Use exhaust fans, if any, in the bathroom(s) and kitchen while using those facilities and notify Landlord of any inoperative exhaust fans.
7. Use all reasonable care to close all windows and other openings in the premises to prevent outdoor water from penetrating into the interior Residence.
8. Clean and dry any visible moisture on windows, walls and other surfaces, including personal property, as soon as reasonably possible. (NOTE: Mold can grow on damp surfaces within 24 to 48 hours.)
9. To notify the Landlord of any problems with the air conditioning or heating systems.
10. To release, indemnify and hold harmless and forever discharge Landlord and Landlord's employees, agents, successors and assigns from any and all claims, liabilities or causes of action of any kind that Tenant, members of Tenant's household or Tenant's guests or invitees may have at any time against Landlord or Landlord's agents resulting from the presence of mold due to Tenant's failure to comply with this Mold and Ventilation. **The undersigned Tenant(s) acknowledge(s) having read and understood the foregoing.**

SMOKE DETECTOR CARBON MONOXIDE DETECTOR AND WATER HEATER CERTIFICATION

1. **SMOKE DETECTORS:** Landlord is aware that Section 13113.7 of the California Health and Safety Code requires that at the time a new tenancy is created, such residential dwelling in the State of California must have operable smoke detectors, approved and listed by the State Fire Marshal and installed in accordance with the State Fire Marshall's regulations, which incorporate the California Building Code. The 1995 edition of the California Building Code provides: "Sec. 310.9.1.4 Location within dwelling units. In dwelling units, a detector shall be installed in each sleeping room and at a point centrally located in the corridor or area giving access to each separate sleeping area. When the dwelling unit has more than one story and in dwellings with basements, a detector shall be installed on each story and in the basement. In dwelling units where a story or basement is split into two or more levels, the smoke detector shall be installed on the upper level, except

that when the lower level contains a sleeping area, a detector shall be installed on each level. When sleeping rooms are on an upper level, the detector shall be placed at the ceiling of the upper level in close proximity to the stairway. In dwelling units where the ceiling height of a room open to the hallway serving the bedrooms exceeds that of the hallway by 24 inches (610 mm) or more, smoke detectors shall be installed in the hallway and in the adjacent room. Detectors shall sound an alarm audible in all sleeping areas of the dwelling unit in which they are located." According to the State Fire Marshal, single-family dwellings which were built to building codes prior to the 1991 edition need to have the smoke detectors installed "at a point centrally located in the corridor or area giving access to each separate sleeping area." However, the State Fire Marshal strongly recommends that smoke detectors be installed in all sleeping rooms for the safety of the occupants.

2. CARBON MONOXIDE DETECTORS: § 13260 of the California Health and Safety Code requires that a carbon monoxide detector approved and listed with the State Fire Marshall be installed in all residential dwellings which contain "fossil-fuel burning devices" (such as a fireplace or gas heater) as well as in dwellings which have an attached garage.

3. WATER HEATER: Section 19211 of the California Health and Safety Code, as amended effective July 12, 1996, requires that "all new and replacement water heaters, and all existing residential water heaters shall be braced, anchored, or strapped to resist failing or horizontal displacement due to earthquake motion. At a minimum, any water heater shall be secured in accordance with the California Plumbing Code, or modifications made thereto" by a city or county. The Uniform Plumbing Code provides that "Strapping shall be at points within the upper one-third (1/3) and lower one-third (1/3) of its vertical dimensions. At the lower point, a minimum distance of four (4) inches (101.6 mm) shall be maintained above the controls with the strapping." **LANDLORD WARRANTS THAT THE PROPERTY HAS OPERABLE SMOKE DETECTORS AND CARBON MONOXIDE DETECTORS AS REQUIRED BY THE STATE FIRE MARSHAL'S REGULATIONS AND ANY LOCAL ORDINANCE, AND THAT THE HOT WATER HEATER(S) LOCATED IN THE ABOVE PROPERTY ARE SECURED AS REQUIRED BY LAW**

3.2 REQUEST, REPAIRS, MALFUNCTIONS

REPAIR AND MAINTENANCE

Tenant shall properly use and operate all furnishings, appliances, electrical, gas and plumbing fixtures and keep them clean and sanitary. Tenant shall report any damage or problem immediately upon discovery and agrees to pay for all repairs or replacements caused by Tenant or Tenant's invitees negligence or misuse. Landlord complying with or responding to any oral request regarding security or non-security matters doesn't waive the strict requirement for written notices under this Lease Agreement. Tenant must promptly notify Landlord in writing of: water leaks; electrical problems; malfunctioning lights; broken or missing locks or latches; and other conditions that pose a hazard to the property, or health, or safety. Landlord will respond in accordance with state law and this Lease Agreement to repair or remedy the situation, as necessary. Landlord may turn off equipment and interrupt utilities as needed to avoid property damage or to perform work. Under no circumstances will the Landlord be financially responsible for improvements or repairs made by Tenant, or caused to be made by Tenant, unless the Tenant was given written authorization to make repairs or improvements in advance.

DRAIN STOPPAGE

As of the date of this Agreement, Landlord warrants that the property's sewage drains are in good working order and that they will accept the normal household waste for which they were designed. They will not accept things such as cloth or disposable diapers, wipes of any kind (even those claiming they are "flushable"), sanitary napkins, tampons, children's toys, wads of toilet paper, accumulation of hair, grease, oil, table scraps, clothing, rags, sand, dirt, rocks, or newspapers. Tenants agree to pay for clearing the drains of any hard or soft blockages except those that a plumber, approved by Landlord, will attest in writing were caused by defective plumbing, tree roots, or acts of nature. A **hard blockage** is when some kind of debris – rock, a child's or dog's toy, etc – finds its way into the drain line. A **soft blockage** has built up over time and is often made up of hair, grease, soap scum, toothpaste, shaving cream, hair products or similar.

BED BUGS & PESTS

1. "**Pests**" include (but are not limited to) bed bugs, cockroaches, mites, termites, mice, rats, other vermin and insects. Pest control of ants and non-poisonous spiders is a tenant responsibility.

2. **Landlord Inspection.** Landlord has inspected the Premises and is unaware of any pests in the Premises. At move-in, Resident will complete and sign a Move-In/Move-Out Statement documenting the Premises' condition. If Resident fails to report defects in the Move-In/Move-Out Statement, it will be presumed that the Premises have been delivered in good condition and free of pests.

3. **Resident Responsibilities and Cooperation.** Resident agrees to cooperate with pest control efforts by:

- Keeping the Premises clean and uncluttered;
- Promptly advising Landlord of any pest infestations or pest control needs;
- Refraining from bringing bed bugs and other pests into the Premises, and inspecting all luggage, bedding, clothing, and personal property for bed bugs and other pests before move-in, returning home after traveling and/or bringing new items to the Premises. You will allow us to do the same upon request. If we have a concern about possible infestation, we may (but will not be obligated to) either prohibit you from bringing the item into the Premises or require you to have the item professionally treated at your expense before the item is brought into the Premises.
- Providing Landlord with access to Premises for Landlord's pest control assessments and pest control treatment;
- Cooperating with inspections to facilitate detection and treatment of pests, including providing requested information that is necessary to

facilitate the detection and treatment of pests.

· Preparing the Premises for pest control treatment and/or vacating the Premises when necessary in connection with Landlord's pest control efforts. Resident will comply with all instructions necessary to prepare the Premises for fumigation, testing/inspection or repair. Storage, cleaning, removal, or replacement of contaminated or potentially contaminated personal property will be Resident's responsibility and at Resident's expense unless the contamination was the result of Landlord's negligence, intentional wrongdoing or violation of law. Landlord is not responsible for any condition about which Landlord is not aware;

· Upon request by Landlord, promptly providing Landlord with copies of all records, documents, sampling data and other materials relating to the condition of the Premises.

4. If Resident is Required to Vacate for Treatment. If requested by Landlord, Resident agrees to temporarily vacate the Premises for fumigation, Premises testing/inspection, or repairs. If Resident is required to vacate the Premises for treatment, Landlord may (but will not be required to) waive rent due for the period of Resident's vacancy on a per diem basis. Resident will not be entitled to rent waiver unless the contamination was the result of Landlord's negligence, intentional wrongdoing or violation of law.

5. Bed bugs

A. Information about Bed Bugs.

Bed bug Appearance: Bed bugs have six legs. Adult bed bugs have flat bodies about 1/4 of an inch in length. Their color can vary from red and brown to copper colored. Young bed bugs are very small. Their bodies are about 1/16 of an inch in length. They have almost no color. When a bed bug feeds, its body swells, may lengthen, and becomes bright red, sometimes making it appear to be a different insect. Bed bugs do not fly. They can either crawl or be carried from place to place on objects, people, or animals. Bed bugs can be hard to find and identify because they are tiny and try to stay hidden.

Life Cycle and Reproduction: An average bed bug lives for about 10 months. Female bed bugs lay one to five eggs per day. Bed bugs grow to full adulthood in about 21 days. Bed bugs can survive for months without feeding.

Bed bug Bites: Because bed bugs usually feed at night, most people are bitten in their sleep and do not realize they were bitten. A person's reaction to insect bites is an immune response and so varies from person to person. Sometimes the red welts caused by the bites will not be noticed until many days after a person was bitten, if at all.

Common signs and symptoms of a possible bed bug infestation:

- Small red to reddish brown fecal spots on mattresses, box springs, bed frames, mattresses, linens, upholstery, or walls.
- Molted bed bug skins, white, sticky eggs, or empty eggshells.
- Very heavily infested areas may have a characteristically sweet odor.
- Red, itchy bite marks, especially on the legs, arms, and other body parts exposed while sleeping. However, some people do not show bed bug lesions on their bodies even though bed bugs may have fed on them.

For more information, see the Internet Web sites of the United States Environmental Protection Agency and the National Pest Management Association.

Please report suspected bed bug infestations to us by contacting Select 1 Realty Property Management at 925.706.9000 or the office located at 1500 A Street, Anitoch CA. 94509.

B. Growing Problem. In the past, bed bug infestations were primarily associated with crowded and dilapidated housing. However, bed bug infestations are becoming more common and can be found even in first class hotel and living accommodations. The increase may be the result of increased human travel, movement of infested luggage and items, and changes in the pesticides available to control this pest. Bed bugs are transferred to new locations on people, their clothing, furniture, bedding, and luggage.

C. Inspection Before Bringing Items to Premises. To prevent bed bug infestations, Resident agrees that before move-in and/or bringing new items to the Premises, Resident will inspect all luggage, bedding, clothing, and personal property and to carefully scrutinize and consider the history of any used furniture before bringing it to the Premises. (Resident should be mindful that furniture found discarded in or around dumpsters or elsewhere may have been discarded because of a bed bug infestation). Resident will allow Landlord to do the same upon request. If Landlord has a concern about possible infestation, Landlord may (but will not be obligated to) either prohibit Resident from bringing the item into the Premises and building or, require Resident to have the item treated at Resident's expense before the item is brought into the Premises or building.

D. Resident Notification to Landlord of Infestation. Resident will immediately notify Landlord of any condition in the Premises indicating a bed bug infestation, such as itchy welts on Resident's skin; bed bugs (whether alive or dead); blood spots (either red or brown) or excrement spots (brown or black) on bedding or the bed; or a sweet odor.

E. Bed Bug Treatment. Bed bug treatment is challenging. It requires Resident's cooperation, professional treatments over several weeks, and will require treatment and/or discarding of furniture, clothing, and personal property. Because of the difficulty of bed bug extermination, and because of the risk that bed bugs could spread into other units, Resident agrees that if bed bugs are found, Resident will immediately contact Landlord, and will not attempt to personally exterminate bed bugs without professional assistance.

6. **Breach of Pest Control Obligations is a Material Breach.** Because pests may pose a risk to the health and safety of other residents, Resident's breach of this Addendum is a material breach of the Lease.

7. **Resident Obligation to Indemnify for Failure to Comply.** Resident agrees to indemnify and hold Landlord harmless from any claims, losses, damages and expenses that Landlord incurs from the negligence of Resident or Resident's household members, guests or agents, or their failure to comply with this Addendum.

8. **Resident Information.** Unless otherwise disclosed by Resident, Resident represents and warrants to Landlord that Resident's current residence, furniture, clothing and personal property are currently free from pests. **If Resident experienced a pest infestation in Resident's current residence,** Resident agrees to provide Walters Home Management with the following information:

1. Describe, in detail, how pest infestation affected residence, furniture, clothing or personal property.
2. Inform property manager if the infestation has not been professionally treated.
3. If the infestation has been professionally treated by a licensed pest control professional, and Resident's current residence, furniture, clothing and personal property is free of pests. Resident agrees to cooperate with Landlord's efforts to confirm this information, and will provide documentation regarding the pest control treatment and will allow Landlord to inspect Resident's furniture, clothing and personal property (if Landlord chooses to inspect, but Landlord will have no obligation to do so) to confirm the absence of pests.

TEMPORARY RELOCATION

Subject to local law, Tenant agrees, upon demand of Landlord, to temporarily vacate Premises for a reasonable period, to allow for fumigation (or other methods) to control wood destroying pests or organisms, or other repairs to premises. Tenant agrees to comply with all instructions and requirements necessary to prepare premises to accommodate pest control, fumigation or other work. Tenant shall only be entitled to a credit of rent equal to the per diem rent for the period of time Tenant is required to vacate premises.

3.3 RIGHTS OF ENTRY

ACCESS TO PREMISES

Tenant shall make the property available to Landlord, Owner or Owner's representative for the purpose of entering to make necessary or agreed repairs, decorations, alterations, or improvements, or to supply necessary or agreed services, or to show premises to prospective or actual purchasers, tenants, mortgagees, lenders, appraisers, or contractors. Landlord and Tenant agree that 24 hour written notice shall be reasonable and sufficient notice. No written notice is required if Landlord and Tenant verbally agree to an entry for agreed services, repairs or showings if the date and time of entry are within one week of the verbal agreement.

3.4 MOVE-OUT

TENANT'S OBLIGATIONS UPON VACATING PREMISES

Upon termination of this Agreement, Tenant shall: 1) give Landlord all copies of keys or opening devices to premises, including any common areas; 2) vacate and surrender premises to Landlord, empty of all persons; 3) vacate any/all parking and/or storage space; 4) remove all debris; 5) give written notice to Landlord of Tenant's forwarding address. All alterations/improvements made by or caused to be made by Tenant, with or without Landlord's consent, become the property of Landlord upon termination. Landlord may charge Tenant for restoration of the premises to the condition it was in prior to any alterations/improvements.

Surrender, abandonment, and eviction ends your right of possession for all purposes and gives landlord the immediate right to: clean up, make repairs in, and re-rent the property; determine any security deposit deductions; and remove personal belongings left in the property, subject to applicable law. Surrender, abandonment, and eviction affect Tenant's rights to any belongings left in the property. Surrender, abandonment, and eviction do not affect Landlord's mitigation obligations.

Cleaning and Painting

Tenant is responsible for having all flooring surfaces professionally cleaned at the termination of their tenancy using a vendor that is approved by Landlord. If Tenant desires, Landlord will have flooring surfaces professionally cleaned and deduct the expense from Tenant's security deposit. Tenant must thoroughly clean the unit, including doors, windows, furniture, bathrooms, kitchen appliances, patios, balconies, garages, carports, and storage rooms. Tenant will be provided with Move-Out Instructions when Notice to Terminate Tenancy is received or given. Interior paint is expected to last approximately three years. If the property was freshly painted when you moved in and paint is needed again on your move-out, you will be charged:

- 100% if occupancy is 6 months or less
- 75% if occupancy was 6 months to 12 months
- 50% if occupancy is 13 months to 24 months
- 25% if occupancy is 25 months to 36 months

Any wall damage repair will be an additional charge regardless of length of occupancy. If additional labor is needed to remove stickers,

crayon or other severe markings on walls or ceilings you will be responsible for the costs associated with removal.

Other Charges

Tenant is responsible for the following charges, if applicable: unpaid rent; unpaid utilities; unreimbursed service charges; repairs or other damages, excluding ordinary wear and tear; replacement cost of property that was in or attached to the residence and is missing; unreturned keys; missing or burned-out light bulbs; removing or rekeying unauthorized security devices or alarm systems; packing, removing, or storing property removed or stored; removing illegally parked vehicles; animal-related charges; government fees or fines against us for violation (by you, your occupant, or guest) of local ordinances relating to smoke detectors, false alarms, recycling, or other matters; latepayment and returned-check charges, plus attorney's fees, court costs, and filing fees actually paid; and other sums due under this Lease Contract.

Right to Pre-Move-Out Inspection and Repairs: After giving or receiving notice of termination of a tenancy, or before the end of a lease, Tenant has the right to request that an inspection of the premises take place prior to termination of the lease or rental. If Tenant requests such an inspection, Tenant shall be given an opportunity to remedy identified deficiencies prior to termination, consistent with the terms of this Agreement. Any repairs or alterations made to the premises as a result of this inspection shall be made at Tenant's expense. Repairs may be performed by Tenant or through others, who have adequate insurance and licenses and are approved by Landlord. The work shall comply with applicable law, including governmental permit, inspection and approval requirements. Repairs shall be performed in a good, skillful manner with materials of quality and appearance comparable to existing materials. It is understood that exact restoration of appearance or cosmetic items following all repairs may not be possible. Tenant shall: a) obtain receipts for repairs performed by others; b) prepare a written statement indicating the repairs performed by Tenant and the date of such repairs; and c) provide copies of receipts and statements to Landlord prior to termination. This paragraph does not apply when the tenancy is terminated pursuant to California Code of Civil Procedure 1161(2), (3), or (4).

Deposit Refund

Landlord will mail to Tenant's forwarding address or, if none is provided, to the last known address your security-deposit refund (less lawful deductions) and an itemized accounting of any deductions no later than 21 (twenty-one) days after the Lease Agreement termination and delivery of possession to us.

By initialing below, you acknowledge and agree to the terms in Section 3.

X SR
Sandy A. Rios

4. General Clauses

4.1 SMOKE FREE ENVIRONMENT

Tenant agrees and acknowledges that the premises to be occupied by Tenant and members of Tenant's household have been designated as non-smoking. Tenant and members of Tenant's household shall not smoke anywhere in the residence, or on the premises, rented by Tenant nor shall Tenant permit any guests or visitors under the control of Tenant to smoke. The term "smoking" means inhaling, exhaling, breathing, or carrying any lighted or heated cigar, cigarette, or other tobacco product or plant product in any manner or in any form. Smoking also includes use of an electronic cigarette, cigar or pipe. Tenant acknowledges any violation of this provision that is discovered during or at the end of their tenancy will result in additional cleaning and painting charges.

4.2 RELEASE FROM LEASE CONTRACT

EARLY TERMINATION OF LEASE

In the event of termination by Tenant prior to the completion of the term of this Agreement, Tenant shall remain responsible for rent until a replacement resident is secured and takes possession of the property. Tenant will be responsible for any costs incurred by landlord including, but not limited to, leasing commissions, advertising expenses and costs necessary to ready premises for re-rental (such as painting, cleaning and changing of locks). Tenant specifically authorizes Landlord to withhold from security deposit any amounts that remain unpaid at the time notice is given. Military Personnel Clause Tenant may terminate the Lease Agreement if you qualify for the provisions under Servicemembers Civil Relief Act (SCRA). Tenant agrees to provide written notice of termination as provided in the SCRA and provide proof of orders qualifying Tenant for this provision. Damage to Premises If, by no fault of Tenant, Premises are totally or partially damaged or destroyed by fire, earthquake, accident, flooding or other casualty that render Premises totally or partially uninhabitable, either Landlord or Tenant may terminate this Agreement by giving the other written notice. Rent shall be abated as of the date Premises become totally or partially uninhabitable. The abated amount shall be the current monthly Rent prorated on a 30-day period. If the Agreement is not terminated, Landlord shall promptly repair the damage, and Rent shall be reduced based on the extent to which the damage interferes with Tenant's reasonable use of Premises. If damage occurs as a result of an act of Tenant or Tenant's guests, only Landlord shall have the right of

termination, and no reduction in Rent shall be made.

4.3 DEFAULT BY RESIDENT

Tenant will be in default if Tenant or any guest or occupant violates any terms of this Lease Agreement including but not limited to the following violations: failure to pay rent or other amounts that you owe when due; you or any guest or occupant violates community rules and regulations, or fire, safety, health, or criminal laws, or engages in dangerous behavior, regardless of whether or where arrest or conviction occurs; Tenant abandon the residence, gives incorrect or false answers in the rental application or provides false or fraudulent documentation requested Landlord; any illegal drugs or paraphernalia are found in the residence; Tenant or any guest or occupant engages in any prohibited conduct.

Holdover

Tenant or any occupant, invitee or guest must not hold over beyond the date contained in your move-out notice to vacate (or beyond a different move-out dated agreed to by the parties in writing). If a holdover occurs, then Landlord shall be entitled to damages for the holdover period plus any expenses incurred due to the breach of this condition of the Lease Agreement.

Other Remedies

If rent is delinquent, Tenant immediately forfeits all rights to occupy the residence any longer, and if Tenant has not vacated the unit by the date specified in the Lease Agreement termination notice, Tenant is guilty of a misdemeanor. Each day of unlawful presence in the residence constitutes a separate offense. Landlord may report unpaid amounts to credit agencies. Upon Tenant's default and early move-out, Tenant will pay any amounts stated to be rental discounts or concessions, in addition to other sums due. Upon Tenant's default, Landlord has all other legal remedies, including suit for Lease Agreement termination, possession, damages, rent, and all other monies due. Landlord may turn any returned checks over to law enforcement officials for prosecution according to law.

4.4 RESIDENT CHANGE REQUEST

1. Only Residents that are approved by Landlord and incorporated into a written lease agreement, rental agreement or lease addendum are allowed to live in the subject property. Approval must be obtained IN ADVANCE of a change in Residents under the terms of this lease agreement.

2. Final acceptance of a resident change requires approval of new resident(s) and a fully executed Lease Amendment to the Lease Agreement or a new Lease Agreement signed by all parties.

3. Resident changes are only allowed for Lease Agreements that have all financial obligations current and have no other outstanding issues.

4. An administrative fee will be charged to process a resident change and will be due upon approval of the new resident(s). The administrative fee will be charged as follows:

1. \$150.00 - 1 new resident
2. \$300.00 - 2 - 3 new residents
3. \$400.00 - 4 or more new residents

5. The new prospective resident(s) must complete an application and the required application fee is excluded from the administrative fee.

6. Only approved applications will be considered for a resident change.

7. Once a resident change has been approved, a Lease Amendment will be drafted that removes the vacating resident(s) and adds the new resident(s) to the Lease Agreement. 8. Any transfer of security deposit funds must be negotiated between the new residents(s), vacating resident(s) and the remaining resident(s). The new resident(s) takes on the obligation of returning the property to the condition documented as of the date of the original Lease Agreement.

9. All parties to the Lease Agreement remain jointly and severally liable to all Terms and Conditions of the Lease Agreement unless released in writing by Select 1 Realty Property Management.

4.5 CONTRACT TERMINATION AND DISPUTE

This Lease Agreement may only be amended, waived, or terminated by Landlord's representatives in writing. Any oral promises, representations or agreements by our representatives shall not be considered legally binding. No action or omission of our representative will be considered a waiver of any subsequent violation, default, or time or place of performance. Landlord not enforcing or belatedly enforcing written notice requirement, rental due dates, acceleration, liens, or other rights shall not be considered a waiver under any circumstances.

HARASSMENT

Tenant and Tenant's Related Parties may not abuse, harass or threaten Landlord, or Landlord's Related Parties. Violation of this Agreement

provision is a breach of this agreement and grounds for termination of Resident's tenancy. Resident and Resident's Related Parties may not unreasonably interfere with management functions. Landlord's Related Parties: Property Manager and the respective officers, managers, employees, affiliates, vendors, agents and representatives of both Landlord and Property Manager. Resident's Related Parties: Other CoResidents, occupants, members of your household, your family, guests, agents and others under your control.

LEGAL FEES

In any legal action brought by either party to enforce the terms of this agreement or relating to the Premises, whether based in contract or in tort, the prevailing party will be entitled to reasonable attorney's fees and costs incurred, not to exceed \$1000.00, in connection with that action.

WAIVER OF JURY TRIAL To minimize legal expenses and, to the extent allowed by law, Tenant and Landlord agree that a trial of any lawsuit based on statute common law, and/or related to this Lease Agreement shall be to a judge and not a jury.

FORCE MAJEURE

Landlord, and landlord's agent or other representative, shall be excused from performance of obligations if prevented from fulfilling such obligations by an act of God, strikes, epidemics, war, acts of terrorism, riots, or other occurrence, which is beyond our control.

4.6 INTERPRETATION OF CONTRACT

If for any reason I do not comprehend this contract in its entirety, I understand I am entitled to obtain an interpreter at my own expense. By my execution of this contract I hereby attest that I understand and will abide by all terms and conditions contained herein.

By initialing below, you acknowledge and agree to the terms in Section 4.

X SR
Sandy A. Rios

5. Proposition 65 Warning

5.1 PROPOSITION 65 DISCLOSURE

THIS PROPERTY MAY CONTAIN CHEMICALS KNOWN TO THE STATE OF CALIFORNIA TO CAUSE CANCER AND BIRTH DEFECTS OR OTHER REPRODUCTIVE HARM

Office of Environmental Health Hazard Assessment

Proposition 65 in Plain Language

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WHAT IS PROPOSITION 65?

In November 1986, California voters overwhelmingly approved an initiative to address growing concerns about exposures to toxic chemicals. That initiative became the Safe Drinking Water and Toxic Enforcement Act of 1986, better known by its original name.

WHAT DOES PROPOSITION 65 REQUIRE?

Proposition 65 requires the Governor to publish a list of chemicals that are known to the State of California to cause cancer, birth defects or other reproductive harm. Agents that cause cancer are called carcinogens; those that cause birth defects or other reproductive harm are called reproductive toxicants. This list must be updated at least once a year. Over 700 chemicals have been listed as of March 10, 2000.

Proposition 65 imposes certain controls that apply to chemicals that appear on this list. These controls are designed to protect California's drinking water sources from contamination by these chemicals, to allow California consumers to make informed choices about the products they purchase, and to enable residents or workers to take whatever action they deem appropriate to protect themselves from exposure to these harmful chemicals.

Thus, Proposition 65 also provides a market-based incentive for manufacturers to remove listed chemicals from their products.

The benefits of the Proposition have their costs. Businesses have incurred expenses to test products, develop alternatives, reduce discharges, provide warnings and otherwise comply with the requirements of the proposition. Recognizing that compliance with the proposition comes with a price, Cal/EPA and the Office of Environmental Health Hazard Assessment (the lead agency for Proposition 65 implementation) have worked hard to minimize any unnecessary regulatory burdens and ensure that placement of a chemical on the list is done in accordance with rigorous science in an open public process.

WHAT KIND OF CHEMICALS ARE ON THE LIST?

The list contains a wide range of chemicals, including dyes, solvents, pesticides, drugs, food additives, and byproducts of certain processes. These chemicals may be naturally occurring or synthetic. Some of them are ingredients of common household products, others are specialty chemicals used in very specific industrial applications.

HOW DOES A CHEMICAL GET LISTED?

The State of California relies upon information that already exists in the scientific literature when determining the threat of a chemical. A chemical is listed if the "state's qualified experts" – two independent committees of scientists and health professionals appointed by the Governor – find that the chemical has been clearly shown to cause cancer or birth defects or other reproductive harm. In addition, a chemical can be listed if it has been classified as a carcinogen or as a reproductive toxicant by an organization that has been designated as "authoritative" for purposes of Proposition 65. For carcinogens, the organizations that have been designated as authoritative by OEHHA Science Advisory Board's Carcinogen Identification Committee as the U.S. Environmental Protection Agency, U.S. Food and Drug Administration, National Institute for Occupational Safety and Health, the National Toxicology Program and the International Agency for Research on Cancer. government.

The OEHHA Science Advisory Board's Developmental and Reproductive Toxicant Identification Committee have designated the following organizations as "authoritative bodies" for reproductive toxicants: the U.S. Environmental Protection Agency, U.S. Food and Drug Administration, National Institute for Occupational Safety and Health and International Agency for Research on Cancer (limited only to transplacental carcinogenicity). A chemical can also be listed if it is required to be labeled or identified as a carcinogen or as a reproductive toxicant by an agency of the state or federal

WHAT ARE THE RESPONSIBILITIES OF COMPANIES DOING BUSINESS IN CALIFORNIA?

Any company with ten or more employees that operates within the State or sells products in California must comply with the requirements of Proposition 65. Under Proposition 65, businesses are:

1. prohibited from knowingly discharging listed chemicals into sources of drinking water; and
2. required to provide "clear and reasonable" warning before knowingly and intentionally exposing anyone to a listed chemical.

This warning can be given by a variety of means, such as by labeling a consumer product, by posting signs at the workplace, or by publishing notices in a newspaper.

WHAT DOES A WARNING MEAN?

If you are given a warning or if a warning is posted in a workplace, a facility or an area in your community, this means that the business issuing the warning knows or presumes that one or more listed chemicals is or may be present in its product, in its workplace, or in its emissions into the environment. Under the law, a warning must be given unless a business demonstrates that the potential exposure poses no significant risk.

For a chemical that is listed as a carcinogen, the "no significant risk" level is defined as the level which is calculated to result in not more than one excess case of cancer in 100,000 individuals exposed over a 70-year life span. In other words, if you are exposed to the chemical in question at this level every day for 70 years, theoretically it will increase your chances of getting cancer by no more than 1 case in 100,000 individuals so exposed.

For chemicals that are on the list as reproductive toxicants, the "no significant risk" level is defined as the level of exposure which, even if multiplied by 1,000, will not produce birth defects or other reproductive harm. That is, the level of exposure is below the "no observable effect level (NOEL)," divided by 1,000. (The "no observable effect level" is the highest dose level which has not been associated with an observable reproductive harm in humans or test animals.)

When a warning is given by a business, it means one of two things:

1. the business has evaluated the exposure and has concluded that it exceeds the no significant risk level; or
2. the business has chosen to provide a warning simply based on its knowledge of or concern about the potential presence of a listed chemical, without attempting to evaluate the exposure. In these cases, exposure could be below the Proposition 65 level of concern, or could even be zero.

Since businesses do not file reports with the State regarding what warnings they have issued and why, the State is not able to provide further information about any particular warning which you may have received. The business issuing the warning is the appropriate party to contact if you seek more specific information about the warning, such as what chemicals are involved, in what manner these chemicals are present, and how exposures to those chemicals may or may not occur.

WHAT HAS BEEN ACCOMPLISHED AS A RESULT OF PROPOSITION 65?

Proposition 65 has provided an effective mechanism for reducing certain exposures that may not have been adequately controlled under existing federal or state laws. For example, a Proposition 65 enforcement action has resulted in the reduction of the amount of lead in ceramic tableware. Air emissions of certain chemicals – including ethylene oxide, hexavalent chromium and chloroform – from facilities in California have been significantly reduced as a result of Proposition 65.

Certain chemicals on the list are no longer used as constituents of some commonly used products – for example, trichloroethylene is no longer used in most correction fluids, toluene has been removed from many nail care products, and foil caps on wine bottles no longer contain lead.

Proposition 65 has resulted in the extensive dissemination of important information regarding the dangers to the unborn child of drinking alcoholic beverages during pregnancy. The warnings about alcoholic beverage consumption during pregnancy are perhaps the most widespread and visible type of warning issued as a result of Proposition 65.

FOR FURTHER INFORMATION

Contact the Office of Environmental Health Hazard Assessment's Proposition 65 Implementation Office at (916) 445-6900.

By signing below, you acknowledge and agree to the terms in Section 5.

X Sandy Rios

Lessee

IP Address: 98.210.81.35
10/24/2022 09:25am PDT

6. Resident Benefit Package

6.1 RESIDENT BENEFIT PACKAGE PLAN A

Resident Benefit Package Addendum Resident and Landlord mutually agree the Resident Benefit Package is defined as follows and variations of inclusions may exist due to property specifications. The total monthly cost of the Resident Benefits Package is all-inclusive, and no discounts will be given if any element(s) of the package are unavailable due to a lack of HVAC or other property-specific limitations.

Resident is required to maintain liability insurance at all times during occupancy. If Resident would like the required insurance included as part of the monthly cost, please choose PLAN A. If Resident would prefer to secure their own insurance, along with the necessary additional insured endorsements, and provides proof of their own insurance, choose PLAN B.

Please select PLAN A or PLAN B from the options below:

X Plan A (\$39/month) Includes:

1. Build your credit score: Landlord provides credit reporting to cast positive payment history through a third-party service. Landlord is not responsible for any misrepresentation, erroneous reporting, and/or lack of reporting by the third-party service. Resident understands that any disputes will be handled directly between Resident and the third-party service.
2. Pinata Resident Rewards: Resident acknowledges that a Resident rewards program is made available to them by Landlord. Rewards are to be accessed online and are activated at Resident's sole discretion through use of a mobile application provided by the rewards provider. Pinata Rewards will provide Resident with available rewards as a preferred customer of Landlord.
3. Tenant Liability Insurance Policy: (includes) a.\$20,000 Renter Content Coverage (\$250 deductible) under the property management company master policy. Policy coverage is based on replacement cost. b. \$100,000 Tenant Liability Insurance Coverage under the property management company master policy. c.\$10,000 Renters Bodily Injury Coverage (\$250 deductible).
4. HVAC Filter Delivery: Resident is responsible for replacing all A/C and heating system filters at the property on a quarterly basis. The only filters to be used at the property will be provided by Landlord and will be mailed directly to the property approximately every 90 days. Resident shall properly install the filter within two (2) days of receipt. Resident hereby acknowledges that the filters are dated to verify replacement and are subject to inspection by Landlord upon reasonable notice. If at any time Resident cannot properly or timely install a filter Resident shall immediately notify Landlord in writing. Resident's failure to properly and timely replace the filters is a material breach of this agreement and Landlord shall be entitled to exercise all rights and remedies it has against Resident and Resident shall be liable to Landlord for all damages to the property, A/C or heating system.
5. \$1M ID Protection: By executing this agreement, you are agreeing to Aura's IdentityGuard Terms of Service and Privacy Policy with respect to the identity theft protection service provided as part of the RBP, which can be found at www.identityguard.com.
6. Late Fee/NSF Forgiveness: One-time late fee or Non-Sufficient Fund forgiveness.
7. Resident Portal: Personalized Online Portal to conveniently submit all maintenance requests, payments and electronic documents by using your computer or smartphone.
8. Emergency Maintenance Services: Dedicated after-hours maintenance emergency number where you can call in and speak to a person who will assist with the situation.

Plan B (\$27/month) Includes:

1. Build your credit score: Landlord provides credit reporting to cast positive payment history through a third-party service. Landlord is not responsible for any misrepresentation, erroneous reporting, and/or lack of reporting by the third-party service. Resident understands that any disputes will be handled directly between Resident and the third-party service.
2. Pinata Resident Rewards: Resident acknowledges that a Resident rewards program is made available to them by Landlord. Rewards are to be accessed online and are activated at Resident's sole discretion through use of a mobile application provided by the rewards provider. Pinata Rewards will provide Resident with available rewards as a preferred customer of Landlord.
3. HVAC Filter Delivery: Resident is responsible for replacing all A/C and heating system filters at the property on a quarterly basis. The only filters to be used at the property will be provided by Landlord and will be mailed directly to the property approximately every 90 days. Resident shall properly install the filter within two (2) days of receipt. Resident hereby acknowledges that the filters are dated to verify replacement and are subject to inspection by Landlord upon reasonable notice. If at any time Resident cannot properly or timely install a

filter Resident shall immediately notify Landlord in writing. Resident's failure to properly and timely replace the filters is a material breach of this agreement and Landlord shall be entitled to exercise all rights and remedies it has against Resident and Resident shall be liable to Landlord for all damages to the property, A/C or heating system.

4. \$1M ID Protection: By executing this agreement, you are agreeing to Aura's IdentityGuard Terms of Service and Privacy Policy with respect to the identity theft protection service provided as part of the RBP, which can be found at www.identityguard.com.

5. Late Fee/NSF Forgiveness: One-time late fee or Non-Sufficient Fund forgiveness.

6. Resident Portal: Personalized Online Portal to conveniently submit all maintenance requests, payments and electronic documents by using your computer or smartphone.

7. Emergency Maintenance Services: Dedicated after-hours maintenance emergency number where you can call in and speak to a person who will assist with the situation.

Under Plan B, Resident is responsible to provide a certificate of insurance to the Property Manager upon lease signing and with all renewals. In the event a copy of the insurance policy or certificate of insurance is not provided when requested, Resident will AUTOMATICALLY be enrolled in PLAN A to ensure proper coverage.

By signing below, you acknowledge and agree to the terms in Section 6.

X *Sandy Rios*

Lessee

IP Address: 98.210.81.35
10/24/2022 09:25am PDT

7. Tenant Fee Schedule Addendum

7.1 TENANT FEE SCHEDULE ADDENDUM

2130 Prato St
Brentwood, CA 94513

These charges have been put in place to offset the cost and time involved needed to address each issue listed below on behalf of the tenant.

Failing to Transfer or Connect Utilities Fee - \$125.00 This fee is charged when a tenant fails to connect utilities in their name after taking possession of the property. Also, the resident will be charged prorated utility charges. **The charge is for each utility not transfer into the tenants' name.**

"Notice to Vacate" Eviction Posting Fee - \$50.00 This fee is charged when rent is late, and we must physically deliver or post a Notice to Vacate at the property. Tenants who breach the lease are subject to be put in default and/or lease termination. Owner reserves right to seek all reasonable and necessary pre-litigation and litigation costs to evict tenant including attorney's fees.

Certified Letter Fee - \$25.00 This fee will be levied for any occasion the tenant is sent a certified letter for negative reasons. Examples are a pending eviction, an unauthorized pet, failure to respond to email and telephone correspondence from Select 1 Realty Property Management; or any other lease violation.

After-Hours Maintenance Fee - \$95.00 This fee will be assessed on a case-by-case basis and does not apply to emergency calls such as HVAC or water issues. This fee is charged to a tenant in the event an after-hours maintenance call is required for a routine service call. We understand that tenants have careers and can only be home at certain times after work or on the weekends the same applies to our staff. It is the policy of Select 1 Realty Property Management not to perform any work on a property on behalf of the tenant without the tenant being home to allow for access to the home. We feel this will avoid issues of missing items in the home, or any uneasy feelings of key security.

Failure to make the property accessible for any reason Fee - \$75.00 per occurrence. If Landlord or Landlord's agents are denied or are not able to access the property for any reason: Required Rental Housing Inspections, Require Annual Inspections of the property, Appraisers needing access for refinancing needs, Unauthorized Pets on the property, Deadbolt(s) left lock, Security System Armed, Canceled Scheduled appointment, Etc.

HOA & Lease Violation Administration Fee - \$75.00 This fee will be charged anytime the homeowner or Select 1 Realty Property Management receives a letter for rule enforcement from the Homeowner's Association (HOA), and/or tenant has violated a condition of the lease agreement. This fee is in addition to any fine charged by the Homeowner's Association. The most common examples are the lawn needing to be mowed and edged (tenant responsibility), the garbage cans left in sight from the street on non-garbage pickup days, unauthorized boats or trailers parked in the driveway or on the street, A/C filters not being changed monthly, unauthorized pet on the property, unauthorized trampolines, etc. If Select 1 Realty Property Management must reinspect property for a Tenant's lease violation, Tenant will also be charged a \$125.00 inspection fee per occurrence.

Lease Processing Fee for Lease Modifications - \$295.00 This fee will be charged if a tenant wants an administrative action that will cause their lease agreement to be modified. If a resident would like to remove or add an occupant from or to a Rental Agreement, add a pet to a Rental Agreement or anything that will cause the lease to be modified, a processing fee of \$295.00 will be charged to the tenant. We cannot remove the financially responsible parties from the lease agreement until the end of the lease. California laws requires all adults of the age of 18 to be on the Rental Agreement. Occupancy of an 18-year-old adult who is not on the Rental Agreement is terms for immediate termination of the Rental Agreement.

Lease Renewal Fee - \$50.00 This fee would be charged once a tenant signs a lease renewal with Select 1 Realty Property Management. This covers the administrative costs of preparing and executing a lease renewal and offers the convenience of electronic signatures. This fee is only charged if there is no communication with Select 1 Realty Property Management and we do not receive the Renewal Notice 5 days before the renewal is to take place or the last day on the Rental Agreement.

Failure to Maintain Utilities - \$150.00 Tenants vacating the property are required to maintain utilities until the move-out inspection has been completed. Failure to maintain utilities requires the staff to reschedule and dispatch the inspector, schedule utilities to be reconnected, delays any repairs that might be needed, and potentially costs the owner days of rent.

Move-Out Property Survey Report - \$125.00 This charge is assessed when the property is not left in a make-ready condition, in addition to the Make-Ready Coordination Fee. This pays for the move-out report showing the condition the property was left in.

Make-Ready Coordination Fee for Cleaning or Repairs - \$295.00 This fee will be charged if Select 1 Realty Property Management has to

make additional arrangements to provide maid service, lawn service, carpet cleaning, or repairs to any damages done to the home that calls for repair because of tenant negligence. Receipts are kept for costs involved, and can be provided to the tenant. This fee is \$295.00 and is meant to cover the administrative cost in organizing this work on the tenant's behalf.

Failure to return keys - \$75.00 Failure to turn in keys means that the tenants have not returned possession of the property back to Select 1 Realty Property Management, and tenants can be charged additional rent. The lease states the tenants must return all keys, remote controls, and pool/property access passes. Failure to do so causes additional staff time locating and coordinating the re-issuance of said devices. The amount charged for lost remotes and pool/gate access devices will be their combined retail value.

Holdover Fee – Three Times Monthly Rent This fee will be charged if the tenant has remained in the home after the proper 30-day Notice to Vacate was delivered in accordance with the lease agreement.

Stop Payment Fee - \$50.00 This fee is charged if a tenant does not receive a check from Select 1 Realty Property Management for any reason that is the fault of the tenant. An example would be if we were provided the wrong forwarding address and our check to you is lost in the mail. This necessitates a stop payment on that check and issuance of another check. We are charged a fee for stop payment by our bank, and that cost would be passed along to the outgoing tenant.

Re-Issue Check Fee - \$25.00 This fee is charged to the tenant when through the fault of the tenant a check is lost and Select 1 Realty Property Management must re-issue a check to them. It usually coincides with the stop payment fee.

Court Appearance Fee - \$750.00 In the event a that a trial is scheduled due to the tenant's failure to resolve any issues surrounding the Notice to Vacate, this charge is applied to offset the cost of an employee to appear in court. This charge is in addition to any cost associated with the eviction including but not limited to attorney fees and costs charged by the court.

Collection Administration Fee – 5.00% of the balance owed. This fee will be charged to a tenant in the event we have to initiate a collection to recoup any funds owed to Select 1 Realty Property Management or the property owner. This will include rent, late fees, NSF fees, or any other past due items. All charges listed above are assessed on a case-by-case basis. This list does not encompass all possible charges that can occur in the handling of tenant issues during and after the term of the lease agreement. This fee does not cover any fee that the Collection company may charge.

Walk-Thru Fee - \$125.00 This fee would be charged if the tenant requests an in-person walk-thru either to move into the home or when moving out of the home. An escorted walk-thru of a property with the tenant and a representative of Select 1 Realty Property Management is above and beyond the regular practice of a vacant home walk-thru. This fee is charged because the tenant often still has access to the home via keys, and often has possessions still in the home requiring us to do an extra walk-thru once the locks have been changed and the tenant has completely vacated.

Lock out/lost Keys, Fobs, Passes Openers, Remotes - \$150.00 each. This fee will be charged when the tenant(s) lose any of the following items: House Keys, Garage door remotes, Security Gate keys, Security Gate remotes or Security Gate Fobs, Parking Passes, Entry gate passes, Visitor parking passes, Pool keys or Pool Fobs, Mail Box keys, Indoor or Outdoor Ceiling Fan Remotes.

Unauthorized Pet Charge. In the event of harboring, pet sitting, caring for, fostering or allowing a pet at the property without proper notification to the management company will result in a \$1,000.00 fine for having an unauthorized pet at the property and a violation of the rental agreement.

Non-Disparagement / Representations - Select 1 Realty Property Management and Tenant(s) mutually agree, that as additional consideration, specifically the mutuality of this clause, each is prohibited from making disparaging remarks/statements or publications regarding the other to any third party, internet, or other sites, effective the date of this agreement. This provision relates to remarks statements/publications regarding this agreement or either parties' performance under this Agreement, or subsequent to any termination of this agreement. If any dispute arises regarding whether any remark/statement or publication is disparaging, the parties agree that for purposes of this provision, expressly including the enforcement of this provision detailed below, that any remark/statement or publication shall be irrefutably deemed disparaging if: (1) the other party requests, in writing, that the writing/publishing party remove the remark and/or publication; and (2) the remark and/or publication is not removed within two days of said requests. Select 1 Realty Property Management & Tenant(s) mutually agree that damages for failure to comply with this provision shall be liquidated at two hundred dollars per day for each remark/statement/representation that is disparaging or is not removed within two days of request to remove said remark/ statement/representation. Select 1 Realty Property Management. & Tenant(s) further agree that enforcement of this provision is appropriate through a temporary restraining order and/or injunctions and permanent injunctions, notwithstanding any rights under the First Amendment to the United States and California Constitutions, and that any party who prevails on enforcement of this provision, whether for monetary damages or injunctive relief is entitled to recover attorney fees against the other.

Venue - Select 1 Realty Property Management. & Tenant(s) expressly submit to the jurisdiction of the State of California and agree that venue in any litigation touching or concerning this Agreement shall be proper ONLY in California.

At Select 1 Realty Property Management, we ask that you give us the same respect we are happy to offer you, and will not tolerate physical, verbal, or psychological abuse. Any threatening or potentially harmful behavior directed toward any of our staff, employees, or representatives, is grounds for non-renewal of the lease agreement.

Any information on your rental history requested of us for law-enforcement, governmental, or business purposes may be provided. We may also report rental payment data to credit agencies.

By signing below, you acknowledge and agree to the terms in Section 7.

X *Sandy Rios*

Lessee

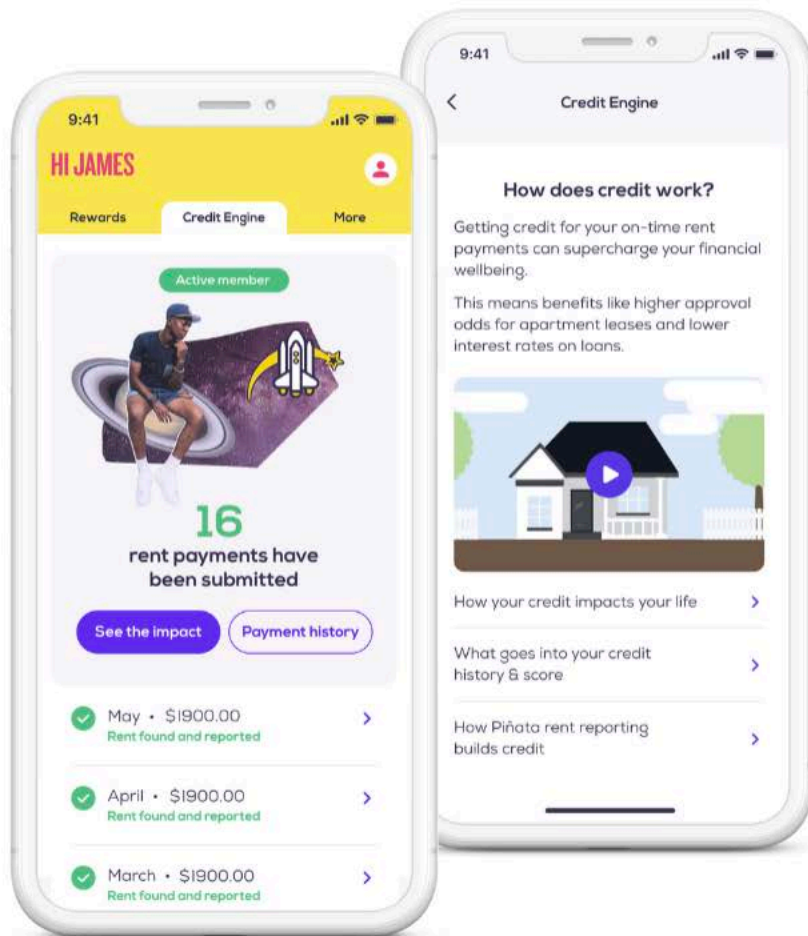
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BOOST CREDIT SCORES

Rent payments to all three credit bureaus: Transunion, Equifax, Experian

We provide your renters with their credit score and education, along with the full rent payment history for simplified tracking.

- Reduce delinquency
- Increase ancillary revenue
- Reduce collections cost



8

Credit_Reporting.pdf

X *Sandy Rios*

Lessee

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WHAT'S SO IMPORTANT ABOUT IAQ?

GOOD INDOOR AIR QUALITY (IAQ) makes the great indoors a more pleasant place to be. It improves our health, increases productivity, and helps us concentrate and learn. **Take a tour around town to find out how IAQ affects you, no matter where you are.**

AT THE OFFICE

THE DANGER WITHIN: HVAC systems can act as sources of pollutants.¹

WORKER WELLNESS: Poor IAQ is tied to headaches, fatigue, trouble concentrating and irritation of the eyes, nose throat and lungs.²

POWER TO THE PEOPLE: People have less control over the indoor environment in their offices than they do in their homes.³

¹ www.cdc.gov/niosh/topics/indoorenv/hvac.html
² www.osha.gov/SLTC/indoorairquality/index.html
³ <https://www.epa.gov/indoor-air-quality-iaq/indoor-air-quality-offices-and-other-large-buildings>

AT THE HOSPITAL

INFECTION DETECTION: Airborne spread of tuberculosis, influenza or the common cold can be controlled by an HVAC system.⁴

AIRBORNE DISEASE: Infectious particles can stay airborne for hours and be transported over long distances.⁵

HEALTHIER HOSPITAL: High-efficiency particulate filters are likely to reduce airborne infectious particles.⁶

⁴ <https://www.asthrea.org/File%20Library/docLib/About%20Us/PositionDocuments/Airborne-Infectious-Diseases.pdf>
⁵ <https://www.asthrea.org/File%20Library/docLib/About%20Us/PositionDocuments/Airborne-Infectious-Diseases.pdf>
⁶ <https://www.asthrea.org/File%20Library/docLib/About%20Us/PositionDocuments/Airborne-Infectious-Diseases.pdf>

IN SCHOOL

EXPOSED: More than 6 million children have asthma, a condition triggered by tobacco smoke, dust mites, air pollution, pets and mold.⁷

SICK DAY: Asthma is a leading cause of school absenteeism.⁸

TEST TAKERS: Children in classrooms with higher outdoor ventilation rates tend to achieve higher scores on standardized math and reading tests than those in poorly ventilated classrooms.⁹

⁷ www.cdc.gov/asthma/most_recent_data.htm www.cdc.gov/asthma/faqs.htm
⁸ www.cdc.gov/asthma/schools.html
⁹ www.epa.gov/iaq/schools/evidence-scientific-literature-about-improved-academic-performance

AT HOME

BRING THE OUTDOORS IN: You can lower indoor air pollutants by increasing the amount of outdoor air coming in.¹⁰

AT RISK: People most susceptible to poor IAQ are those with asthma, allergies, chemical sensitivities, respiratory diseases, suppressed immune systems and contact lenses.¹¹

FILTER IT: HVAC engineers recommend putting a good particle filter or air cleaner in a home's air handling system to keep dirt out of the air and off the ductwork and heating/cooling components.¹²

¹⁰ www.epa.gov/indoor-air-quality-iaq/improving-indoor-air-quality
¹¹ www.epa.gov/iaq/schools/why-indoor-air-quality-important-schools
¹² www.asthrea.org/resources-publications/free-resources/10-tips-for-home-indoor-air-quality

WANT BETTER IAQ? The right ventilation and building care can help prevent and fix IAQ problems. One important step — using air filters that capture particles 2.5 microns or smaller — can lead to a healthier environment.

For more information go to www.KCfiltration.com



Filtration Products

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Filter_Benefits.pdf

X *Sandy Rios*

Lessee

IP Address: 98.210.81.35
10/24/2022 09:26am PDT

Foldable Air Filter Technical Overview

We're excited to release the first major residential air filter innovation in the last 30 years! This creative folding air filter **performs better**, is **easier to change**, and **creates less environmental waste**. Best of all? It's every bit as compatible with HVAC units. So, what makes this folding filter so special?

Better Performance

This filter was thoroughly tested in both a laboratory and real-world homes.

- 10% less initial pressure drop compared to standard MERV 8 filters, meaning a **more efficient airflow**.
- Industry standard ASHRAE 52.2 tests verify **this filter meets or exceeds MERV 8 standards**.
- The soft-edge frame creates a tighter seal, which leads to several particle-stopping improvements.



This new filter has been tested and verified to capture:

97%*

more of the smallest
particles like bacteria.

38%

more medium-sized
particles like mold spores.

16%

more of the largest harmful
particles like pollen.

See "Tech Specs" below for more in-depth technical information.

*as compared to a major filter media manufacturer.

Design Upgrades

The frame is constructed from durable medium carbon, spring tempered steel. Strength-wise, the material is comparable to valve springs in car engines. It holds strong well beyond the pressure levels generated in residential HVAC units.

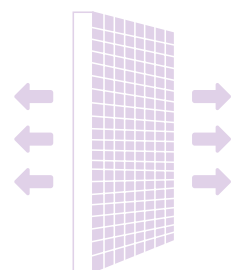
The frame design is similar to designs NASA uses for deploying antennas and solar cells.

The flexibility of the frame means we can package these filters for better durability during shipping, unlike traditional cardboard frames that are subject to collapse.

This new design virtually eliminates damage accidentally caused by the end-user when opening and installing the filter. It also puts an end to damaging inventory while being carried on a service truck.

Simplified Installation

The filtration media on this filter allows for effective and efficient filtration no matter the airflow direction. There's no need to feel confused or unsure during routine change outs. However it's installed, this filter can be trusted to work.



FAQ

Is this new filter okay for most HVAC systems?

Absolutely! It uses much of the same base filtration technology as existing air filters, with much-needed improvements to the overall design. You're actually getting more efficient airflow, which puts less strain on the HVAC unit.

Why does it bend? Is that sturdy?

The Flex-Lock frame is designed to better withstand shipping. Because it's folded up, it can't be damaged as easily as regular cardboard filters. Plus, the smaller package size is easier to transport, and more environmentally friendly. When the filter pops into shape, it "locks" into position, stronger than almost any other air filter on the market. When truck space is at a premium, less space per filter means more sizes and types of filters can be carried and less time spent going back to restock supplies.

How does this filter perform?

It's been tested and verified to perform equal to or better than a typical MERV 8 air filter. That means it's great at removing pollen, pet dander, dust particles and more from your air. In fact, it actually stops up to 97%* more of the smallest particles like bacteria. And unlike a typical MERV 8 air filter that performs worse when installed backward, these air filters are effective and perform well when installed in either direction.

The pleats look flat, is that normal?

Due to shipping, portions of the pleated material may appear slightly flat upon opening. However, once installed, the airflow will straighten these pleats out over a few days, and there are no negative impacts to filter efficiency or HVAC compatibility.

Will this filter damage HVAC coils?

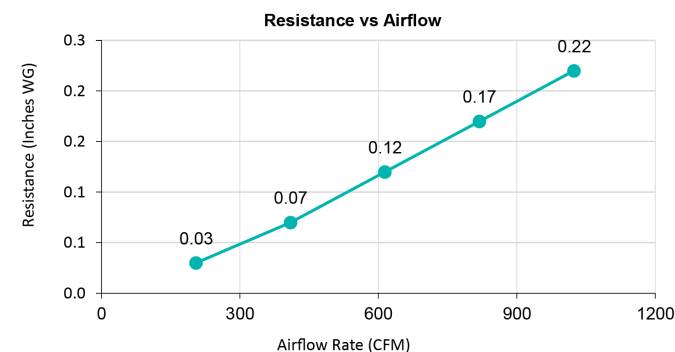
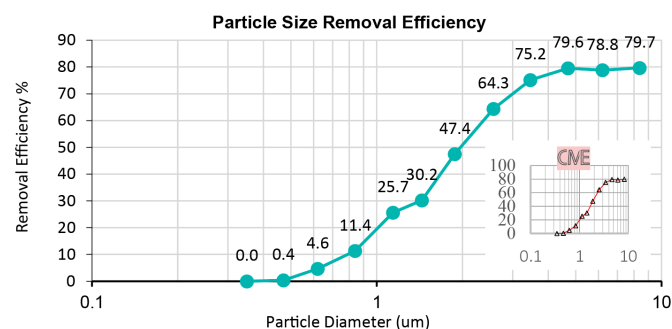
Like many air filters, this filter doesn't touch or interact with the coils. If any type of air filter goes unchanged for too long it can clog up and restrict air flow to the point an overrun HVAC unit can freeze up. Regular air filter changes will prevent this issue.

What happens if something does go wrong?

We've rigorously tested our air filters and verified them to work as expected, but we're happy to help troubleshoot any issue you may encounter, including examining and testing the air filter to identify any anomalies. We stand behind the research and design of our new innovative filter and will work with you, should the need arise, to help find a root cause.

Tech Specs

Manufacturer	Second Nature
Material Name	Thermal Bonded Non-Woven Material
Media Type	Synthetic
Nominal Dimensions (in) W x H x D	20 x 20 x 1
Pocket / Pleats Quantity	22 pleats
Frame	Spring tempered steel
Air Flow Rate (CFM)	819
Initial Resistance (in. WG) @614 CFM	.12
Minimum Efficiency Rating Value (MERV)	MERV 8+
E1 (%) Initial Efficiency 0.30 - 1.0 um	4.1
E2 (%) Initial Efficiency 1.0 - 3.0 um	41.9
E3 (%) Initial Efficiency 3.0 - 10.0 um	78.3
Nominal Face Velocity (ft/min) @819 CFM	205
Test Air Temp (degrees F.)	74
Relative Humidity (%)	28



About Second Nature

Second Nature is dedicated to providing premium quality air filters that stop a wide array of harmful air pollutants. A happier, healthier home is easier than ever with Second Nature's convenient air filter subscription service. The high-quality filters you need, right when you need them. [Learn more at secondnature.com](https://secondnature.com).

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Filter_Program.pdf

X *Sandy Rios*

Lessee

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Information on Dampness and Mold for Renters in California

Main points:

- Living in damp or moldy buildings increases the chances of respiratory problems like asthma.
- The critical warning signs are visible mold, water damage, damp materials, or mold smell.
- Dampness is needed for mold to grow, so if you control the dampness, you control the mold.
- Dampness or mold indoors may make housing substandard, per the California Health & Safety Code.



Beginning January 1, 2022, residential landlords shall provide this booklet to prospective residential tenants prior to entering the rental or lease agreement, in accordance with the 2001 Toxic Mold Protection Act (HSC #26148). This booklet, which explains the potential health risks and health impacts that may result from exposure to mold, was produced by the California Department of Public Health (CDPH) in 2020, in both English and Spanish versions.

Health Problems from Damp or Moldy Buildings

Living or working in damp or moldy buildings increases the risk of many harmful health problems, including:

- asthma attacks in people who already have asthma
- a new asthma diagnosis
- respiratory infections, such as bronchitis
- breathing symptoms, such as hay fever, sneezing, stuffy nose, sore throat, wheezing, breathing difficulty, or cough
- eczema or skin rash

Mold can affect people differently. How much a person is affected depends on how sensitive they are and on how much they are exposed. Damp or moldy buildings are linked to health problems in people even if they do not have allergies.

Signs of Dampness or Mold

Signs of dampness or mold that may cause health problems include:

- **visible mold** (regardless of color), such as on walls or ceilings, behind furniture or appliances, under carpets, or even hidden in areas not seen in the occupied areas of homes
- **mold odor**, noticed as an earthy, musty, or moldy smell
- **visible water damage**, such as water-stains or discoloration on walls or ceilings, peeling or bubbled paint, warped floors, or rotting wood
- **damp or moist materials**, including condensation on windows or walls

Any one of these signs indicates increased risks to health, and the more that any of them are present, the greater the risk of health problems. Tests that identify the types of mold or the amounts of mold in buildings are not useful in telling us about the health risks. This is *why CDPH does not recommend testing for mold, such as measuring mold spores in the air.*



Causes of Building Dampness that Can Allow Mold to Grow

The dampness that is necessary for indoor mold to grow can come from either inside or outside a building.

Indoor sources include:

- leaking or burst water pipes, for instance under sinks inside walls
- not enough venting to the outside by open windows or exhaust fans in places where water is used or moisture is produced (for example, bathrooms, laundry areas, kitchens, and water heaters)
- condensation (water droplets) on cold surfaces, including windows

Outdoor sources include:

- water coming in through leaky roofs or poorly-sealed windows, or from flooding
- damp, exposed dirt in crawl spaces
- outdoor surfaces that slope and drain water toward a building, including from a downspout



Fixing Dampness and Mold Problems

The California Health & Safety Code (HSC §17920.3) says that when dampness or visible mold (or certain other conditions) in a home is a hazard to the health of occupants, the home is *substandard* and the property owner must fix the conditions. The Code excludes mold that is “minor and found on surfaces that accumulate moisture as part of their properly functioning and intended use.”

CDPH recommends fixing dampness and mold problems as follows:

- identifying and correcting the source of any water that may allow mold to grow
- rapid drying or removal of damp materials
- cleaning or removing mold and moldy materials as rapidly and safely as possible

Note: if a moldy area is simply bleached, cleaned, or painted over—without fixing the source of the dampness—the mold is likely to grow again.

Renters in California

The California Health & Safety Code requires property owners to provide a rental unit that is safe and healthy for the people living in it. Prospective renters should look for obvious conditions that show dampness or mold, and also less obvious signs like water leaks under the kitchen and bathroom sinks or moldy odor in a sealed-up home. Also look for conditions likely to cause future problems, like a bathroom that has no working vent fan or no window that opens, or a clothes dryer without an outside vent.

For renters who suspect there is dampness or mold:

1. Tell the property owner or manager. Early detection and correction of the dampness and mold problems can reduce the risks to your health and prevent the problem from getting worse.
2. If your property owner will not respond to your concerns in a reasonable amount of time, contact your local (city or county) code enforcement agency and ask for a code enforcement officer to inspect for violations. Many dampness or mold problems in rental homes are the responsibility of the property owner and must be addressed by them. However, a code enforcement officer may determine that dampness or mold in a building results from a tenant's actions or inactions – for instance, not using available bathroom ventilation during showers.
3. If the local inspector determines there is a violation, they can require the property owner to correct the problem.

Additional Resources

For general information on dampness and mold and a list of local code enforcement agencies, with a focus on dampness and mold, see www.cdph.ca.gov/iaq/mold. To see an animated video series, Mold in the Home, visit www.cdph.ca.gov/mold.

Property owners must provide a rental unit that is safe and healthy for the people living in it.

Tenants must notify property owners of any dampness or mold problems.

11

Mold_Booklet.pdf

X *Sandy Rios*

Lessee

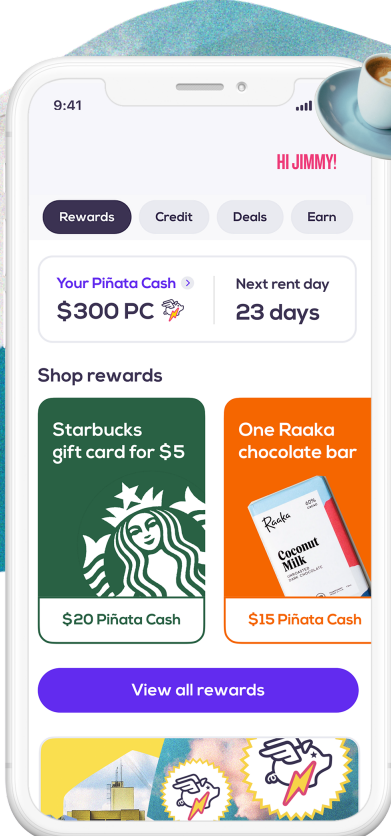
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GET REWARDS FOR RENT

Your property management company has partnered with Piñata, the nation's largest rewards program for renters.





9:41

HI JIMMY!

Rewards Credit Deals Earn

Your Piñata Cash > \$300 PC 🐘

Next rent day 23 days

Shop rewards

Starbucks gift card for \$5



\$20 Piñata Cash

One Raaka chocolate bar



\$15 Piñata Cash

View all rewards





**Access to new
rewards & gift
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**Deals marketplace,
sweepstakes,
and more**

POWERED BY **pinata**



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INSTAGRAM: @PINATA.AI



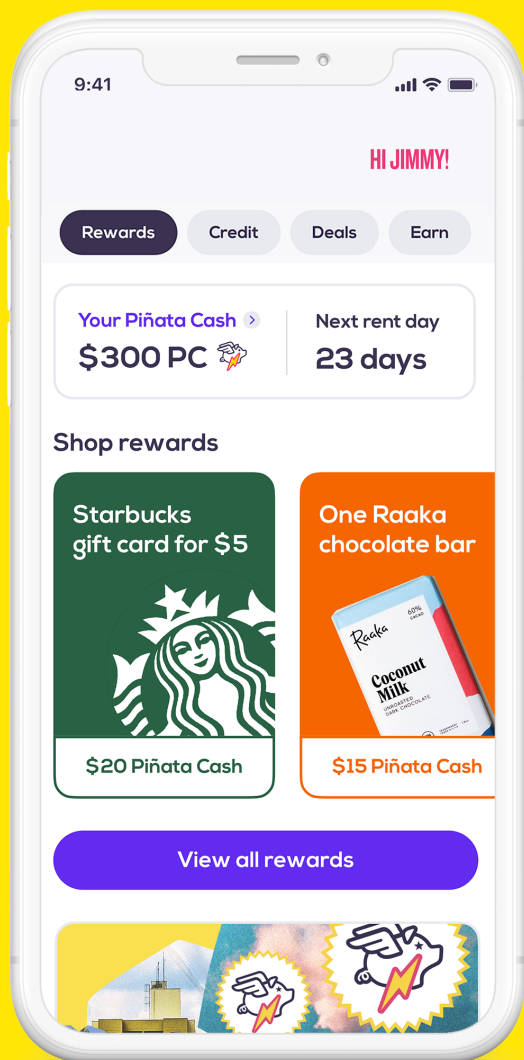
DOWNLOAD THE PIÑATA APP NOW!



PIÑATA CARES

**For every time you pay
rent, we donate a meal to
someone in need**

**BOOST YOUR
MONTHLY REWARDS,
CREDIT BUILDING,
DEALS AND MORE.**



Scan the QR Code below with your camera or search "Piñata Rewards" in your app store to download.



Be sure you log in with the email you use with you tenant portal.



THE RENT REWARDS CREDIT BUILDING PROGRAM FOR RENTERS

POWERED BY
pinata

As a thank you for being a resident, we're partnering with Piñata to give you rewards every time you pay rent. This is part of your benefits package!

Plus, get a \$30 gift card if you sign up!

QUESTIONS?

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PMC_Pinata_Rewards____Credit_Building.pdf

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Aura Identity Guard® Basic

Responsive ID theft protection and data monitoring for Second Nature tenants

A first line of defense against identity crimes

Providing just the right combination of proactive monitoring and reactive support, Identity Guard Basic gives users comprehensive tools to monitor their personal information, recover from identity theft should it occur, and bounce back from any related financial loss.



How it works

Aura Identity Guard monitors data, alerts users to threats, helps recover lost information, and provides users with up to \$1 million in recovery insurance.*



Monitor

Fueled by IBM® Watson™ AI, Identity Guard proactively monitors and processes billions of pieces of information



Alert

We alert you to certain events – such as an account being opened in your name – so you can take action if it wasn't initiated by you



Recover

In the event of identity theft, a dedicated case manager will be assigned to assist you every step of the way



Insure

Our \$1 million insurance policy covers most losses you experience as a result of identity theft, including stolen funds*

The Basic Plan

Proactive Features

- ✓ IBM® Watson™ AI Scanning and Alerts
- ✓ High Risk Transaction Monitoring
- ✓ Dark Web Monitoring
- ✓ Online Identity Dashboard
- ✓ Safe Browsing Extension
- ✓ iOS/Android Apps
- ✓ Data Breach Notifications
- ✓ Anti Phishing Mobile App
- ✓ Lost Wallet Protections

Reactive Features

If a user believes they have been the victim of identity theft, they will receive one-time recovery assistance and additional White Glove Recovery Service for 6 months after the original theft incident. Additional coverage includes:

- ✓ Bank Account Monitoring
- ✓ 3 Bureau Credit Monitoring
- ✓ 3 Bureau Credit Report
- ✓ 401K & Investment Account Monitoring
- ✓ US Based Customer Care
- ✓ \$1 Million Identity Theft Insurance*

13

Second_Nature_ID_Protection_Flyer.pdf

X *Sandy Rios*

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10/24/2022 09:26am PDT



"I'm getting way more out of renting than I ever did before"

-Helen S.

Featured In:



Forbes

House

yahoo!

Inc.



Over 15,000
5-star reviews

Resident Benefits Package

Benefits so good, you may never want to leave.

At Select One Realty, all of our residents get the #1,
most-awarded experience:



Filter Delivery Service

Changing filters is as easy as opening the front door. This service helps you save up to \$250/year and reduces the hassles of repairs.



\$1M Identity Protection

1 in 4 Americans are victims of identity fraud. All adult leaseholders get \$1M coverage backed by AIG, monitoring through IBM's Watson, and a dedicated, US-based Identity Restoration Specialist.



24/7 Maintenance Coordination

It always seems like things happen after hours. This makes reporting those pesky maintenance issues easy and fast either online or by phone.



Online Portal

Access your documents and pay rent through our easy to use online portal.



Credit Building

We report every rent payment so you build credit. Average increases of 23 to 42 points in resident scores, so you can qualify for more and save hundreds. We can report up to the past 24 months for an immediate boost.



Resident Rewards Program

Rent day is now rewards day. You'll get cash, giftcards, and exclusive discounts you can use to save up to \$4500/year on everyday expenses.



Late Fee/NSF Forgiveness

One-time late fee or Non-Sufficient Fund forgiveness.



Tenant Liability Insurance Policy

Includes Renter Content Coverage, Tenant Liability Insurance Coverage and Renters Bodily Injury Coverage.



More

14

Select_One_Realty_RBPFlyer_062222.pdf

X *Sandy Rios*

Lessee

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10/24/2022 09:26am PDT

15. Sign and Accept

15.1 ACCEPTANCE OF LEASE

ENTIRE AGREEMENT

Time is of the essence. This document constitutes the entire Agreement between the parties, and no promises or representations, other than those contained here and those implied by law, have been made by Landlord or Tenants. Any modifications to this Agreement must be in writing signed by Landlord and Tenants. The failure of Tenants or their guests or invitee to comply with any term of this Agreement is ground for termination of the tenancy, with appropriate notice to Tenants and procedures as required by law.

This is a legally binding document. Read it carefully before signing. By typing your name, you are consenting to use electronic means to (i) sign this contract (ii) accept lease agreement and addenda. You will receive a printed contract for your records.

This Agreement may automatically continue as a month-to-month tenancy after termination of the initial term

X *Sandy Rios*

Lessee

IP Address: 98.210.81.35
10/24/2022 09:26am PDT

X *Michael Jenkins*

Lessor

IP Address: 198.0.210.250
10/24/2022 09:54am PDT